

# EAGLEVIEW ESTATES

CENTREPORT CANADA - WINNIPEG

## PRELIMINARY LEASING AGREEMENT

**For preliminary review and acceptance only.**

This document confirms a prospective tenant's interest in commercial yard, parking, storage, staging, or laydown space at EagleView Estates. It is not a final lease, reservation, exclusivity agreement, or guarantee of availability. Final terms remain subject to site availability, municipal requirements where applicable, insurance review, final documentation, and mutual approval.

**Document Purpose:** This Adobe-readable PDF is formatted for review, signing, and internal leasing discussion. It avoids incomplete property-specific blanks and keeps only practical acceptance fields at the end of the document.

| Category         | Preliminary Framework                                                                                                                                              |
|------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Site             | EagleView Estates secured commercial yard facility.                                                                                                                |
| Use              | Commercial outdoor storage, yard, parking, staging, laydown, fleet, equipment, or contractor-related use approved by EagleView Estates.                            |
| Space Allocation | To be determined based on requested size, access requirements, availability, operating intensity, circulation, and final site configuration.                       |
| Term             | Daily, weekly, monthly, seasonal, annual, multi-year, or anchor allocation terms may be reviewed.                                                                  |
| Pricing          | Preliminary pricing may be provided separately and remains subject to availability, requested allocation, exclusivity, operating requirements, and final approval. |

## 1. Parties

Landlord / Operator: **EagleView Estates**.

Prospective Tenant: the company, organization, or representative submitting or accepting this preliminary leasing request.

The Landlord and Prospective Tenant may be referred to individually as a **Party** and collectively as the **Parties**.

## 2. Purpose

The purpose of this Preliminary Leasing Agreement is to establish a commercial review framework for the Prospective Tenant's potential use of secured outdoor yard, parking, staging, laydown, equipment storage, trailer storage, fleet parking, or contractor storage space at EagleView Estates.

This document is intended to support preliminary leasing review only. It does not create possession, occupancy, exclusivity, reservation rights, or any binding tenancy interest unless and until a final written agreement is executed by both Parties.

## 3. Preliminary Site Use

The Prospective Tenant may request consideration for approved commercial site uses, including commercial vehicle, trailer, or fleet parking; equipment storage; contractor laydown yard use; project staging; seasonal or winter equipment storage; approved commercial outdoor storage; and anchor tenant or exclusive site allocation subject to custom review.

Final approval of any use remains subject to EagleView Estates' review, site suitability, access requirements, safety, insurance, municipal requirements where applicable, and final agreement.

## 4. Pricing and Payment

Any pricing schedule, rate card, email quotation, allocation exhibit, proposal, or leasing framework provided by EagleView Estates is preliminary only and subject to change.

Final pricing may vary based on requested yard size, lease term, site availability, exclusive or shared use, access frequency, equipment type, operating intensity, security, lighting, power, maintenance, snow clearing, insurance requirements, municipal approvals where applicable, final site configuration, and final documentation.

Applicable taxes, deposits, damage charges, cleanup charges, late fees, access device fees, and tenant-specific improvement costs may apply where required.

## 5. Permitted and Prohibited Uses

The Prospective Tenant may only use the site for uses approved by EagleView Estates in writing.

Unless expressly approved in writing, the following are prohibited:

- residential occupancy or overnight accommodation;
- public retail sales from the site;
- storage or handling of hazardous, explosive, flammable, contaminated, radioactive, biological, or regulated materials;
- dumping, waste handling, waste storage, or disposal;
- dismantling, scrapping, processing, or wrecking of vehicles, equipment, or materials;
- unapproved fueling, washing, servicing, or repairs;
- soil, aggregate, or material stockpiling without written approval;
- any illegal, unsafe, nuisance, contaminating, or unapproved activity;
- any use not permitted by applicable laws, approvals, bylaws, or site rules.

## **6. Access, Security, and Site Rules**

EagleView Estates may provide controlled access by gate, code, fob, card, remote, key, or another access control method.

The Prospective Tenant and its employees, contractors, drivers, agents, and invitees must comply with all site rules.

- keep gates closed and secured after entry and exit;
- do not share access credentials with unauthorized parties;
- remain within the approved allocation area;
- do not block drive aisles, gates, emergency routes, drainage paths, or neighbouring allocations;
- immediately report spills, leaks, damage, security concerns, or unsafe conditions;
- maintain safe operating practices at all times.

EagleView Estates may suspend, restrict, or modify access for safety, security, non-payment, emergency conditions, weather, maintenance, permitting, site construction, or breach of site rules.

## **7. Site Conditions**

The Prospective Tenant acknowledges that outdoor yard conditions may be affected by weather, snow, ice, spring thaw, rain, dust, mud, freeze-thaw cycles, drainage, construction activity, maintenance activity, and general outdoor operating conditions.

The Prospective Tenant shall operate in a manner that does not overload, rut, contaminate, damage, obstruct, or materially degrade the yard surface, access roads, drainage, fencing, gates, lighting, or site infrastructure.

## **8. Tenant Property and Risk**

The Prospective Tenant is responsible for all vehicles, trailers, equipment, containers, materials, tools, goods, inventory, and property brought onto the site.

EagleView Estates does not accept responsibility for theft, vandalism, weather damage, fire, collision, environmental damage, mechanical failure, or loss of tenant property except to the extent expressly required by law or a final executed agreement.

## **9. Insurance**

Before access, occupancy, or storage rights are granted, the Prospective Tenant must provide evidence of insurance acceptable to EagleView Estates.

Required insurance may include commercial general liability, automobile liability, equipment/property coverage, cargo coverage, environmental coverage, or project-specific coverage depending on the proposed use.

EagleView Estates may require itself, the property owner, manager, lender, or related entities to be named as additional insureds where appropriate.

## **10. Environmental Responsibility**

The Prospective Tenant shall not bring, store, release, spill, discharge, dump, bury, process, or dispose of hazardous substances, contaminated materials, regulated waste, fuel, oil, solvents, chemicals, batteries, tires, waste, or other regulated materials on the site without prior written approval and all required permits.

The Prospective Tenant shall immediately notify EagleView Estates of any spill, leak, contamination, or environmental incident and shall be responsible for all cleanup, reporting, remediation, professional fees, government orders, penalties, and related costs arising from its activities.

## **11. Indemnity**

The Prospective Tenant shall indemnify and hold harmless EagleView Estates, the property owner, manager, affiliates, employees, agents, contractors, lenders, and representatives from claims, losses, damages, liabilities, costs, penalties, cleanup costs, legal fees, and expenses arising from the Prospective Tenant's use or proposed use of the site, acts or omissions, property damage, injury to persons, contamination, spills, leaks, waste, environmental impacts, or failure to comply with laws, insurance requirements, municipal requirements, or site rules.

## **12. No Reservation, No Exclusivity, and No Binding Lease**

Unless and until a final written agreement is executed by both Parties, no site area is reserved, no exclusivity is granted, no lease is created, and no possession or occupancy right is provided.

EagleView Estates may continue to market, allocate, lease, license, modify, reconfigure, or negotiate use of the site with other prospective tenants.

Any preliminary layout, drawing, site exhibit, email, pricing schedule, proposal, or discussion is conceptual only unless incorporated into a final executed agreement.

## **13. Confidentiality and Commercial Information**

The Parties may exchange commercial, operational, pricing, site, tenant, project, fleet, or business information in connection with the preliminary review.

Each Party shall use reasonable efforts to keep non-public information confidential and shall not disclose it except as required for internal review, legal review, financing, permitting, insurance, professional advice, or as required by law.

## **14. Governing Law**

This preliminary document shall be interpreted under the laws of the Province of Manitoba and the applicable laws of Canada, subject to review and confirmation in any final agreement.

15. Acceptance for Preliminary Review

By signing below, the Prospective Tenant confirms that it wishes to proceed with preliminary review of the proposed site allocation and leasing framework. The Prospective Tenant acknowledges that no binding lease, reservation, exclusivity, or guarantee of availability is created unless and until a final written agreement is executed by both Parties.

|                                           |
|-------------------------------------------|
| Prospective Tenant Acceptance             |
| Company / Organization:                   |
|                                           |
| Authorized Representative Name and Title: |
|                                           |
| Signature:                                |
|                                           |
| Date:                                     |
|                                           |

|                                           |
|-------------------------------------------|
| EagleView Estates Review                  |
| Company / Organization:                   |
|                                           |
| Authorized Representative Name and Title: |
|                                           |
| Signature:                                |
|                                           |
| Date:                                     |
|                                           |

Schedule A - Preliminary Site Layout Exhibit

Attached Exhibit: EagleView\_Site\_Layout\_Overview.pdf

Any site layout, drawing, allocation exhibit, or visual concept is preliminary only and subject to final site plan, availability, access requirements, engineering review, municipal approvals where applicable, and final written agreement.